

4.1/ 4.2 ETHICS IN LABORATORY / IMPARTIALITY/ CONFIDENTIALITY

OBJECTIVE: To ensure clarity in practice of Ethical values in Laboratory Medicine

SCOPE: Laboratory staff

RESPONSIBILITY: Laboratory Director and all the staff employed under laboratory.

POLICY

Laboratory offers its services keeping the patient's welfare as its paramount interest. It is the responsibility of all the professionals working in laboratory and its individual sections, Laboratory to ensure that the following four principles are practiced. The principles are derived from the Declaration of Geneva, which in turn is derived from the Hippocratic Oath. These are:

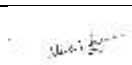
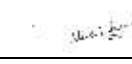
- Autonomy:** The right of patients to make decisions on their own behalf. This right presupposes informed consent of the right to knowledge about their condition.
- Beneficence:** The duty or obligation to act in the best interests of the patient.
- Non maleficence:** The duty or obligation to avoid harm to the patient.
- Justice:** This embodies concepts of fairness and giving what is rightfully due.

PROCEDURE:

A. COLLECTION OF INFORMATION.

- Technicians to collect basic information from the patient like Name, Age so as to enable to affix the correct label on the specimen collected.
- The basic information will also assist in ensuring that there is appropriate accompanying request form.
- Any relevant information required to fulfill the criteria for the collection of specimen should be obtained from the patient.
- The reason for collection of information should be explained to the patient.
- In case of mentally challenged patients or geriatric or children, the consent to be obtained from the parent / guardian/ authorized persons. The verbal consent should be obtained.
- In case of competent person, it is inferred that the patient has consented to the procedure when patient willingly submits to the collection procedure.

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B. COLLECTION OF SPECIMENS

1. Consent to be obtained from competent person and in case of incompetent patients it should be obtained from the authorized person/ parents/ guardian.
2. Process should be explained before starting the procedure.
3. Complete instructions should be given whenever a definite protocol is to be followed for collection of specimen.
4. Adequate privacy to be provided, appropriate to, the type of specimen collected.

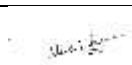
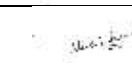
C. PERFORMANCE OF THE TEST

1. All tests carried out in the lab should meet up to appropriate standards that are determined in detail by professional organizations or regulatory authorities.
2. Skilled and competent personnel keeping the best interests of the patient as a paramount importance will carry out all lab work.
3. Lab refuses to attempt a test, which cannot be carried out under appropriate standard conditions.
4. Lab shall refrain from producing unreliable reports that could harm the patient.

D. REPORTING OF RESULTS

1. Test results are disclosed only to the requesting clinician and the patient.
2. However, in case of patients who are covered by Insurance Company, a copy of report is provided to the Insurance Company. This is done only after obtaining the consent from the patient, which is in the form of 'Pre-authorization form' before undergoing any procedure. However, in medico-legal cases, the reports are disclosed to patient and after obtaining consent the reports may be revealed to police. In case of reports after post mortem, the results are provided to police.
3. Disclosure of the test result to third party can be done only after obtaining patient's consent.
4. The results may be disclosed to the consultant, who had referred the patient to the lab. And the patient's acceptance to consult another doctor for cross-reference is taken as an implied consent to the disclosure of test results.
5. The lab ensures that the method adopted to transmit the results is secure and reliable.
6. The turn around time required for the generation of various test results should be in accordance with the turn around time as professed or claimed by the lab.
7. Lab has facilities to carry out emergency investigations to render emergency reporting services.

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8. Lab takes adequate measures to present the test report in proper and a clear format to ensure correct interpretation and diagnosis.
9. Lab takes complete responsibility to ensure that the results released are reliable so as to enable proper interpretation.
10. All measures taken to disclose the test report should be done, keeping the patient's best interests of paramount importance.

E. STORAGE AND RETENTION OF LAB RECORDS

1. Lab ensures that patient data obtained after testing is stored securely.
2. Lab ensures that there is no loss or unauthorized access, tampering or other misuse of patient Data.
3. Other assorted data generated to carry out the test are stored securely.
4. Test result obtained will be readily available to the authorized access.
5. At the end of retention period of medical records, the records are destroyed or disposed in such a way there is no disclosure of information.

Impartiality

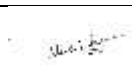
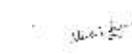
The laboratory is responsible for the impartiality of its laboratory activities and doesn't allow commercial, financial or other pressure to compromise impartiality.

Confidentiality

The patient's right to privacy and the correlating medical duty of confidentiality are also important to the practice of laboratory medicine.

The Information gathered from the patient and the records created about the patient are for his / her benefit. The information will not be disclosed to a third party without the patient's consent unless it's a medico-legal case.

Ref. Doc. : NPBC/ QF/2, Confidentiality agreement

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Sec 4.2; Doc.: NPBC/ QF/02,

CONFIDENTIALITY AGREEMENT

It is hereby agreed that:

Iwill work with full dedication, sincerity and within the framework of professional code of ethics and guidelines defined by the organization and laboratory during my association with the Narayan Pathology & Biopsy Centre, Kanpur. I will execute all my responsibilities as defined in the various lab manuals and will not refuse any other responsibilities given to me by the management during urgent / emergency conditions. I will strictly follow all organization rules, regulation, procedures and instructions as given in various the procedure manual in letter and spirit to avoid potential conflict of interests.

I will conduct all my activities with impartiality and without fear from any internal, external, commercial, financial and other pressures that may adversely affect the quality of work.

I will strictly adhere to all legal and statutory guidelines defined by the Central/ State Government of India and as given in organization manual I will not do any activity that would diminish the confidence in my competence, impartiality, judgment or operational integrity.

I will work towards achieving short and long term goals and objectives set by the laboratory

I will develop, conduct and participate in staff training programs as per the training plan given by the management or whenever instructed

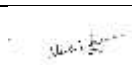
I will not use Narayan Pathology & Biopsy Centre's name as surety / guarantee for taking personal loans etc .

I will maintain strict confidentiality of laboratory and patient information / data.

I will ensure proper safeguard against damage / loss / misuse of laboratory property directly under my supervision / department

Signature of Employee
Name
Date:

Signature of Lab Director
Narayan Pathology & Biopsy Centre
Date:

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